

SENATE BILL 1030

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 37,
relative to immunizations.

WHEREAS, Tennessee Code Annotated, Section 37-10-401(a) declares that a parent or legal guardian is responsible for ensuring that such person's child receives vaccinations as recommended by the Centers for Disease Control and Prevention (CDC) or the American Academy of Pediatrics (AAP); and

WHEREAS, the CDC is a federal agency that operates under federal jurisdiction, not subject to state government oversight or accountability, and the AAP is a private organization, not subject to constitutional accountability or state government oversight and accountability; and

WHEREAS, under the nondelegation doctrine, the General Assembly cannot delegate significant public policy decisions or police powers to entities that are not subject to state oversight and accountability; and

WHEREAS, the landmark case *Jacobson v. Massachusetts*, 25 S.C.T. 358 (1905) affirmed that state vaccination laws are not subject to federal jurisdiction under the Fourteenth Amendment to the Constitution of the United States but are instead an exercise of state police power if and when authorized under a state's constitution; and

WHEREAS, legislative oversight and the rulemaking process are necessary when changing vaccination law to ensure such changes serve a compelling governmental interest of the highest order; and

WHEREAS, the Families' Rights and Responsibilities Act, compiled in Tennessee Code Annotated, Title 36, Chapter 8, affirms that a government entity shall not substantially burden the fundamental rights of a parent unless it demonstrates that such a burden is required by a

compelling governmental interest of the highest order and is the least restrictive means of furthering that interest; and

WHEREAS, deleting § 37-10-401(a) will not affect existing immunization laws, rules, or requirements for schools, nurseries, kindergartens, preschools, or child care facilities; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-10-401(a), is amended by deleting the subsection.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.